



File No.: EXP202403468

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 12, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against XFERA MÓVILES, S.A. (hereinafter, the respondent) without their request receiving the legally established response. The complaint is based on the respondent's failure to address the request made by the complainant exercising their right of access to call recordings that have occurred between both parties.

The complainant states that they requested the respondent to transcribe their calls with them. The company responds that it has not been requested in the proper manner.

The complainant indicates that they did so as the respondent specified: "In accordance with the provisions of the Spanish Agency for the Protection of Data, it must be considered that voice is a peculiar and individual characteristic of each person that makes them identifiable; therefore, it is a personal data.

Consequently, the right of access to the recording of their voice requested by the complainant is indeed protected by current data protection regulations, providing a copy of the requested recording to the complainant or, failing that, a transcription of its content, requesting it at privacida.yoigo@masmovil.com."

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied. Consequently, on May 12, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

C/ Jorge Juan, 6

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The aforementioned agreement granted the respondent a hearing procedure, so that within ten working days they could present the arguments they deemed appropriate, summarizing the following allegations:

"...While it must be contextualized in this regard that the contracting of A.A.A. was carried out through a door-to-door sales representative, who are characterized by conducting contracts only in person. In this type of contracting, the only recordings available from my client are the verification calls of the contracts made with our customer service. If there have been telephone communications from the interested party A.A.A. with the sales representative, my client is unaware of them, and in no case are recordings made in contracts that are carried out in person.

Thus, regarding their request, the available call that has been provided to the interested party on July 19, 2024, is the call made with the following details:

- Call on September 1, 2023, regarding verification of the contract.

It is not possible to provide the rest of the calls that the interested party relates in their request due to lack of object, as the requested information is not available.

Likewise, A.A.A. has been informed of this circumstance on July 19, 2024, by email sent from dpo@masmovil.com. For these purposes, Document Number 1 is attached as proof of this point."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that within ten working days they can formulate the allegations they consider appropriate, summarizing the following allegations:

1. "The contract with YOIGO was through a commercial call, but B.B.B., the manager, told me that when they called me, I had to say that the contract had been made in person. Furthermore, in the history of the WhatsApp conversation that I attached, it is already read as I tell C.C.C. that I said what she indicated to me, and it also refers to the loyalty invoice.
2. If there were no calls, how could I provide them with the exact hour and minute of when the calls occurred? This proves that YOIGO is lying.
3. In the response from MASMOVIL, they indicate that in the verification call of the contract they mention something about penalty rates, but it is not the same as loyalty according to what C.C.C. told me."

C/ Jorge Juan, 6
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3/7

4. Please, I request that you send me the calls I have requested. I have the right to them."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

The outcome of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on May 12, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

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5/7

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the

information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

We will begin by stating that this claim will only consider whether the requested right, the right of access, has been fulfilled or not. The other issues raised by the claimant regarding discrepancies with the respondent concerning the method of contracting the line, whether by telephone or "door to door," will not be taken into account in this resolution.

In the case analyzed here, the claimant exercised their right of Access, sending the respondent the exact dates, times, and duration of the calls. The respondent sent the claimant, on July 19, 2024, only the call from September 1, 2023, regarding the verification of the.

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6/7

hiring, stating that no further information is available regarding the rest of the calls.

The aforementioned rules do not allow the request to be disregarded as if it had not been made, leaving it without the response that the responsible parties are obliged to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the party being complained against has provided documentation proving the communication sent to the interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold the present complaint on formal grounds due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the complaint filed by A.A.A. against XFERA MÓVILES, S.A. However, it is not appropriate to issue a new certification by the party being complained against, as the response was issued late, without requiring the performance of additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the

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7/7

Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

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